



2025:CGHC:1070

AVINASH
SHARMA
Digitally signed by
AVINASH SHARMA
Date: 2025.01.09
14:26:18 +0530

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

MCRC No. 8449 of 2024

- Yogesh Kumar Korram S/o Lt. Pahaad Singh Aged About 27 Years Godari, Nipani, PS And District Balod Chhattisgarh.

... Applicant.

versus

- State Government By District Magistrate Balod District Balod Chhattisgarh.

...State/Non-Applicant.

For Applicant	: Shri Vikhyat Arora, Advocate.
For State	: Shri Ajit Singh, Govt. Advocate.

Hon'ble Shri Justice Deepak Kumar Tiwari

Order on Board

08/01/2025

1. This is the Second bail application filed under Section 483 of the Bharatiya Nagrik Suraksha Sanhita, 2023 for grant of regular bail to the applicant, who has been arrested in connection with Crime No.330/2022 registered at Police Station Balod, District Balod (C.G) for the offence punishable under Sections 420, 409 of IPC.

2. The First Bail Application of the present applicant was dismissed as withdrawn with a direction to the trial Court to expedite the trial vide order dated 14.06.2023 passed in MCRC No.2001 of 2023.
3. This matter is listed on default.
4. At the outset, learned counsel for the applicant would submit that this application may be disposed of with a direction to the concerned trial Court to conclude the trial within a stipulated time frame reserving liberty in favour of applicant that if the main case is not decided within stipulated time frame, he may revive the bail application.
5. Counsel for the other side would not oppose the said prayer.
6. Having regard to the aforesaid submission, this application stands disposed of with a direction to the concerned trial Court to decide the main case in an expeditious and in *de die in diem* manner and if the trial is not concluded within 8 months from the date of communication of this order, applicant would be at liberty to file fresh application on the ground of delay in trial before the concerned trial Court. If the concerned trial Court finds that there is no fault on the part of accused in causing delay, the same shall be considered.
7. Learned State counsel shall communicate this order to the concerned Superintendent of Police in order to ensure presence of witnesses on the dates of hearing.

Sd/-
(Deepak Kumar Tiwari)
Judge